

**Court No. - 21**

**Case :-** WRIT - C No. - 18267 of 2023

**Petitioner :-** M/S Pioneer Fabcon (P)Ltd.

**Respondent :-** State Of U.P. And 2 Others

**Counsel for Petitioner :-** Awadhesh Kumar Mishra,Vijay Pratap Singh

**Counsel for Respondent :-** C.S.C.,Abhishek Srivastava,Kartikeya Saran

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Prashant Kumar,J.**

1. The instant petition has been filed challenging the notice of provisional assessment dated 15.10.2022 issued by respondent no. 3.
2. The petitioner has already filed objection against the said notice. The final assessment order has yet not been passed. No occasion arises to interfere at this stage.
3. The petition is disposed of with direction to respondent no. 3 to pass final order of assessment after taking into consideration the objection filed by the petitioner and strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.
4. Any amount already deposited by the petitioner shall be duly taken into consideration while passing the order of final assessment.
5. The order has been passed in the presence of Sri Ankit Prakash, learned counsel for respondent no. 2.

**(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)**

**Order Date :-** 26.5.2023

Jaideep/-